

26STCV05915 26STCV05915

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C09%2F21%2F2026

Source SHA-256: 616765816cc0206c442c81ae485854e0f5de25473079d26fc330d58cb9707d2f

Case Number: 26STCV05915 Hearing Date: September 21, 2026 Dept: 617

Dept.

617

Date:

9-21-26

Case

#: 26STCV05915

Trial

Date: None Set

PRO HAC VICE

MOVING

PARTY: Plaintiff, Emmanuel D. Pacquiao

RESPONDING

PARTY: Unopposed/Defendants, Gabriel Rueda et al.

RELIEF

REQUESTED

Motion

for Pro Hac Vice Admission

SUMMARY

OF ACTION

Plaintiff

Emmanuel D. Pacquiao filed the instant malicious prosecution action against Defendants Gabriel Rueda a/k/a Gabriel Salvador, Withers Bergman LLP, Pierce Bainbridge Beck Price & Hecht, LLP, Khan Law Office, PC, and Amman Khan. He alleges that Defendants knowingly prosecuted baseless claims against him arising out of an alleged “finder’s fee” for his 2015 fight with boxing legend Floyd Mayweather. Defendants also accused Plaintiff of orchestrating a “terror campaign” in retaliation for Rueda’s demand for money, consisting of stalking, threats, and other malicious actions. Plaintiff prevailed on all claims. Plaintiff alleges that the prior lawsuit was initiated to inflict reputational damage and coerce payment.

RULING: Granted.

Plaintiff

moves for pro hac vice admission of attorney Brian S. Cohen.

Pro hac vice admission in California is governed by California Rules of Court, rule 9.40. To be admitted pro hac vice, one must be “an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (Cal. Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.” (Ibid.)

An attorney seeking pro hac vice admission must file a verified application in court establishing:

(1) [t]he applicant’s residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a licensee in good standing in those courts; (4)[t]hat the applicant is not currently suspended or disbarred in any court; (5)[t]he title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6)[t]he name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

(Cal.

Rules of Court, rule 9.40(d).)

The application complies with California Rules of Court, rule 9.40. Cohen lives and practices in New York. He has applied for pro hac vice admission in California state court once within the last two years. While the proof of service indicates that the State Bar was served by mail and Withers Bergman via email, service must have been made on Withers Bergman by mail. (Cal. Rules of Court, rule 9.40(c)(1).) The application for pro hac vice admission is granted, with counsel to file the requisite proof of service.

Plaintiff to give notice.